

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16, Honorable Roberta S. Hayashi, Presiding

Courtroom Clerk:

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LAW AND MOTION TENTATIVE RULINGS

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

DATE: WEDNESDAY, APRIL 9, 2025

TIME: 9:00 A.M.

Please Read Carefully As Some of Our Protocols Have Changed.

All Courts of California celebrate the diversity of the attorneys and the litigants who appear in our Courts. Do not hesitate to correct the Court or Court Staff concerning the pronunciation of any name or how anyone prefers to be addressed, or referred to. All persons should spell their names for the benefit of Court Staff.

Appearances.

Personal appearances in the courtroom are strongly encouraged. If you must appear remotely, you must use the MS Teams link from a device with a camera. Please "name" yourself when you log in, as: **Line #/name/party**. Remote appearances should be made from a quiet location with no background noise (and not from a moving vehicle). IT IS ABSOLUTELY NECESSARY FOR ALL INDIVIDUALS TO SPEAK SLOWLY, AND NOT TO INTERRUPT WHEN SOMEONE ELSE IS SPEAKING.

Please notify this Court immediately if the matter will not be heard on the scheduled date. **California Rules of Court**, rule 3.1304(b). If a party fails to appear at a law and motion hearing without having given notice, this Court may take the matter off calendar, to be reset only upon motion, or may rule on the matter. **California Rules of Court**, rule 3.1304(d).

This Court expects all counsel and litigants to comply with the Tentative Rulings Procedures that are outlined in Local Civil Rule 7(E) and **California Rules of Court**, rule 3.1308. If the Court has not directed argument, oral argument must be permitted only if a party notifies all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear. A party must notify all other parties by telephone or in person. A failure to timely notify this Court and/or the opposing parties may result in the tentative ruling being the final order in the matter.

A party may give notice that he or she will not appear at a law and motion hearing and submit the matter without an appearance unless this Court orders otherwise. This Court will rule on the motion as if the party had appeared. **California Rules of Court**, rule 3.1304(c).

Court Reporters.

This Court does not appoint Court Reporters in civil actions except in limited circumstances. If you wish to arrange for a private court reporter, please use Local Form #CV-5100.

No electronic recordings, video, still photography or audio capture of this live stream is allowed without the expressed, written permission of the Superior Court of California, County of Santa Clara. Use of the Court's Electronic Recording (ER) system is limited to proceedings permitted by statute or General Order of the Court. State and Local Court rules prohibit photographing or recording of court proceedings whether in the courtroom or while listening on the Public Access Line or other virtual platform, without a Court Order. See Local General Rule 2(A) and 2(B); **California Rules of Court**, rule 1.150.

Orders After Hearing

The Court will prepare the Final Order unless stated otherwise below or at the hearing. Counsel are to comply with **California Rules of Court**, rule 3.1312.

TROUBLESHOOTING TENTATIVE RULINGS

If you see last week's tentative rulings, you have checked prior to the posting of the current week's tentative rulings. You will need to either "REFRESH" or "QUIT" your browser and reopen it. If you fail to do either of these, your browser may pull up old information from old cookies even after the tentative rulings have been posted.

Tentative Rulings Are Continued Below. Full Orders Are On The Following Pages If the "link" in the left column does not work, please scroll down through the document.

LINE #	CASE #	CASE TITLE	RULING
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LINE #	CASE #	CASE TITLE	RULING
LINE 1	23CV416455	N. Charles Podaras vs Valerie Weirauch et al (Case Management Conference on 10 a.m. calendar)	Continued at Plaintiff's Request from January 22, 2025. Tentative Ruling posted 1/21/2025; no further filings since that date. Defendant's Demurrer to First Amended Complaint OVERRULED as to Cause of Action for Negligence; SUSTAINED with 20 days leave to amend as to the Cause of Action for Intentional Torts. See Tentative Ruling below for details.
LINE 2	24CV443908	Sara Olivas vs Kimberly Burrell et al (Case Management Conference on 10 a.m. calendar)	The Demurrer of Defendants District and Burrell to the Seventh and Eighth Causes of Action of Plaintiff's First Amended Complaint is SUSTAINED with 20 days leave to amend; the Demurrer of Defendants to the Ninth Cause of Action is OVERRULED. See Tentative Ruling below for details.
LINE 3	24CV452321	The Wonderful Company, LLC vs Flor Zaragoza (Hearing on Defendant's Special Motion to Strike: 8/13/2025)	Pursuant to CCP section 425.16(g) Plaintiff's Motion to Compel limited and necessary discovery is GRANTED. See Tentative Ruling below.
LINE 4	24CV435601	SAFECO INSURANCE COMPANY OF AMERICA vs MANUEL GUI SAR, Jr.	Plaintiff's Motion to Compel Defendant Manuel Guisar, Jr. to Respond to Discovery (filed 11/19/2024) is MOOT as said Defendant's Answer was stricken by Order of the Court filed 12/20/2024, and his default entered. THE MOTION IS OFF-CALENDAR.
LINE 5	22CV393572	AOC SAN FELIPE OPCO, LP vs ALBERTA GOODE, an individual et al	Plaintiff's Motion to Set Aside the Dismissal is DENIED. See Tentative Ruling Below. Court will prepare the Order.

LINE #	CASE #	CASE TITLE	RULING
LINE 6	22CV402216	Hassan Abpikar vs Sasan Momeni et al	The Motion of Plaintiff's counsel to withdraw is GRANTED. No Opposition was filed. Withdrawal is effective upon filing and service of the Order. Plaintiff's Counsel to prepare Judicial Council Form Order.
LINE 7	23CV418577	Citibank, N.A. vs Ai Tran	Having reviewed the pleadings and declarations on file in this matter, the Court GRANTS Defendant's Claim of Exemption as to all earnings with the exception of \$200/paycheck or the statutory rate for wage garnishment whichever is LESS. Plaintiff to prepare Order.

LINE #	CASE #	CASE TITLE	RULING
LINE 8	24CV442023	Nisai Equity Inc. vs Haiyan Yu et al	Defendant Haiyun Yu’s Motion to Disqualify Plaintiff’s Counsel is GRANTED conditioned on a showing by the moving party as to whether there were confidential communications with Attorney Alan Park of information that is material and related to the issues in this action, which communications were in connection with the representation or potential representation of a party in this action. In her supplemental declaration filed April 2, 2025, at paragraphs 16-17, Defendant Haiyun Yu claims that she disclosed confidential and sensitive financial information about herself and other Defendants. She does not, however, specify what that information was. The Court does not have the time available to conduct an evidentiary hearing (in closed session) on this issue on April 9, 2025. Counsel shall meet and confer about their availability to schedule a hearing at which the Court may hear further testimony, to occur on Monday, May 5 (or another Monday), and to appear. Counsel to appear to discuss scheduling.

LINE #	CASE #	CASE TITLE	RULING
LINE 9	24CV448551	HERITAGE BANK OF COMMERCE, a California corporation vs Patricia Taptelis	Plaintiff's Motion for Entry of Judgment (filed 12/26/2024) is GRANTED. No opposition was filed. The Court having reviewed the pleadings and declarations on file herein, and good cause appearing therefore, finds and orders as follows: The Default of Defendant Patricia Taptelis was entered on December 26, 2024. The Declaration of Michael Bruner establishes that the principal amount of the debt is \$150,000, and that interest has accrued thereon in the amount of \$11,023.95 as of 12/4/2024. The Court awards reasonable attorneys fees to Plaintiff in the amount of \$4,100, plus costs of suit in the amount of \$845.26. Plaintiff is entitled to entry of Judgment for the amounts set forth above. Moving Party to submit the Order for Entry of Judgment and Judgment.

LINE #	CASE #	CASE TITLE	RULING
LINE 10	2009-1-CV-134970	ZF Micro Devices Inc, et al. v. TAT Investment Advisory Ltd, et al. (Trial Setting Conference set for today 4/9/2025)	Plaintiff's Motion for Trial Preference is GRANTED. Plaintiff's Request for Judicial Notice of the Request for Calendar Preference and Order Granting Plaintiff ZF's Motion for Calendar Preference pursuant to CCP section 36(a) in the Sixth District Court of Appeal, Case No. H047334 is GRANTED. The Court having considered the documents on file in this action, the Declaration of David Feldman concerning the change in his health condition since September 2024, and the arguments of counsel for and against the matter, finds that given the current age (79)and health condition of the founder, CEO and sole employee of the corporate Plaintiff, and his unique capacity to testify for and work with counsel at trial, calendar preference is granted in the interests of justice. Wherefore the matter shall be set for trial in not more than 120 days of today's date. Counsel are ordered to meet and confer with regard to the time estimate and provide the Court with at least two dates for commencement of trial at which attorneys, parties and experts will be available. Counsel shall appear for trial setting.

LINE #	CASE #	CASE TITLE	RULING
LINE 11	22CV394304	SOPHIA SERNA et al vs CARLOS CALLES	Defendant's Motion for Terminating Sanctions was continued from March 12, 2025 to afford Plaintiffs the opportunity to comply with the Court's order to compel discovery responses and to pay monetary sanctions. If Plaintiffs have not: 1) provided complete and verified responses to Form Interrogatories, Special Interrogatories and Request for Production of Documents; and 2) provided dates on which they will be available for deposition, then at the hearing on April 9, 2025, the Complaint will be dismissed as to any non-complying Plaintiff. Parties are ordered to appear for Case Management Conference at 9 a.m. in Dept. 16. The Court will dismiss the Complaint as to any Plaintiff who fails to appear.
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LINE #	CASE #	CASE TITLE	RULING
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Calendar Line 1

23CV416455 N. Charles Podaras v. Valerie Weirauch et al.

Tentative Ruling originally posted 1/21/2025; hearing on 1/22/2025 was continued at Plaintiff's request. There being no additional filings, the tentative ruling is not changed.

Demurrer of Defendant Valerie Weirauch to First Amended Complaint overruled as to Cause of Action for Negligence; sustained with 20 days leave to amend as to the Cause of Action for Intentional Torts.

Case Background. Plaintiff N. Charles Podaras ("Plaintiff") filed his First Amended Form Complaint ("FAC") against defendants Valerie Weirauch ("Defendant" or "Weirauch"), Tasha McDonald, Barry Vickery, Marsha Dyslin, and Does 1-25 ("Co-defendants") on January 10, 2024. (See First Amended Complaint ["FAC"].)

Plaintiff alleges in the FAC that in early 2019, Plaintiff moved onto a property in San Jose ("the Property"), owned by Weirauch. (FAC: Factual Allegations at ¶ 2.) Plaintiff alleges that there was a verbal agreement between he and Weirauch under which Plaintiff could reside at the Property, and Plaintiff would help take care of the house and dogs (*ibid.*); however, Plaintiff did not believe he was an employee. (FAC: Factual Allegations at ¶ 3.) Plaintiff alleges there was no understanding that he would no longer be allowed to reside at the Property if Weirauch no longer wanted assistance with the dogs or house. (*Ibid.*)

Plaintiff further alleges that between April 28, 2022 and May 14, 2022, Weirauch took actions to remove Plaintiff from the Property, including multiple verbal and written demands, threats to call law enforcement, and termination of WiFi access and hot water pressure. that he needed to have his belongings out by Saturday. (FAC: Factual Allegations at ¶¶ 4-12).

On May 23, 2022, Plaintiff received notice of Weirauch's Civil Harassment Restraining Order/Temporary Restraining Order ("CHRO/TRO") legal proceeding against him. (FAC: Factual Allegations at ¶ 14.) He discovered he was no longer allowed back in the home where his belongings were, including medication and medical devices. (*Id.* at ¶ 15.) On October 25, 2022, the CHRO was denied and the TRO was lifted. (*Id.* at ¶ 23.) Plaintiff was informed that his belongings were packed up in Weirauch's garage without Plaintiff's permission. (*Id.* at ¶¶ 25, 26.)

On November 18, 2022, Plaintiff visited the Property on an arranged appointment to get his belongings. (FAC: Factual Allegations at ¶ 29.) He was denied entry by Defendants Vickery and Dyslin. Upon leaving, Vickery followed Plaintiff almost 70 yards down the street and indicated he was a lawyer. (*Id.* at ¶¶ 29, 30.) Plaintiff alleges that Vickery retired from his law career in 2016. (*Id.* at ¶ 30.) On December 30, 2022, Plaintiff requested San Jose Police escort him to the Property to retrieve belongings. (FAC: Factual Allegations at ¶ 31.)

Plaintiff filed his initial Complaint. on May 22, 2023. On December 18, 2023, this Court (Hon. Rosen) issued its order sustaining Vickery and Dyslin's demurrer to Plaintiff's initial complaint and granting 20 days' leave to amend. Defendant Weirauch's Demurrer to the original Complaint was filed October 19, 2023, but hearing thereon (set for February 15, 2024) was vacated as Plaintiff had filed his FAC.

On January 10, 2024, Plaintiff filed his FAC. Plaintiff's FAC consists of two parts. First, the FAC includes Form PLD-PI-001 and checks two causes of action for general negligence and intentional tort. (See generally FAC: Form Complaint.) The general negligence claim includes a form attachment stating additional facts, but the intentional tort claim does not include any attachments. (See generally FAC: Form Complaint Attachment.) Second, the FAC also includes "Factual Allegations" on separate pleading paper and elaborates on the events giving rise to this action. (See generally FAC: Factual Allegations.) After listing the relevant facts the FAC indicates "THIS IS INCOMPLETE – TO BE PROVIDED" but goes on to state three separate counts. (See *id.* at p. 7:6-7.) Count 1 conflates three causes of action together: "violation of § 789.3," trespass to chattels, and conversion. (See *id.* at p. 7:8-15.) Count 2 is for "violation of § 1940.2 harassment: interference with quiet enjoyment," and Count 3 is for "violation of § 1942.5 harassment: no harassing after tenant has asserted rights under law." (See *id.* at p. 7:16-24.)

On February 15, 2024, defendants Bryan Vickery and Marsha Dyslin filed a demurrer to the FAC. The demurrer was unopposed and on July 12, 2024 it was sustained in its entirety without leave to amend. On September 24, 2024, Plaintiff filed a notice of appeal of the order sustaining the demurrer.

Procedural Issues. On July 25, 2024, Defendant Weirauch filed a demurrer to the FAC, on the grounds it is ambiguous or uncertain. Plaintiff did not file an opposition in advance of the hearing set for November 26, 2024. On November 26, 2024, Plaintiff in pro per and Defendant Weirauch, represented by counsel, appeared for hearing on the demurrer. (Nov. 26, 2024 Minute Order) Plaintiff contested the tentative ruling. (*Ibid.*) The Court continued the hearing to January 22, 2025 and directed Plaintiff to file a written opposition no later than 9 days before the new hearing date. (*Ibid.*)

Plaintiff filed his opposition on January 9, 2025. Defendant filed her reply on January 16, 2025.

The Weirauch demurrer is timely. Even if a demurrer is untimely filed, the Court has discretion to hear the demurrer so long as its action "... 'does not affect the substantial rights of the parties.' [Citations.]" (See *McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 281-282.) Further, Code of Civil Procedure section 430.41, subd. (a), (2) provides that an automatic 30-day extension of time is granted by "filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer."

Plaintiff filed the FAC on January 10, 2024, and re-filed his summons on January 26, 2024. (Declaration of Darren J. Chetcuti ["Chetcuti Decl."] at ¶ 5.) Co-defendants Mr. Vickrey and Ms. Dyslin filed a demurrer challenging the FAC. (Chetcuti Decl. at ¶ 7.) Defendant Weirauch filed a motion to quash service of the FAC to be heard on May 23, 2024. (*Id.* at ¶ 8.) In the interim on May 21, 2024, Plaintiff properly served the FAC via first-class mail and Defendant withdrew her Motion to Quash. (*Ibid.*) The Court sustained co-defendants' demurrer without leave to amend as Plaintiff did not file an opposition. (Chetcuti Decl. at ¶ 9.) Despite efforts to meet and confer with Plaintiff to seek an extension of time to respond to the FAC, the parties were unable to agree to an extension. (*Id.* at ¶ 10.) Defendant filed a Declaration for a 30-day extension of time pursuant to Code of Civil Procedure section

430.41(a)(2) on June 25, 2024. (*Id.* at ¶ 13.) Defendant filed the demurrer on July 25, 2025. (See Demurrer.) Defendant’s efforts to file a declaration for an automatic extension based on the date of service and Court holidays affecting the responsive pleading deadline are timely. Defendant’s demurrer is also timely based on the date of the automatic extension.

Defendant Weirauch satisfied the meet and confer requirements prior to filing her demurrer to the FAC, as required by CCP § 430.41, subd. (a). In his declaration in support of the demurrer, counsel for Defendant, Darren J. Chetcuti (“Mr. Chetcuti”), states that the parties met and conferred on January 2, 2024. (Chetcuti Decl. at ¶ 4.) Counsel states that on June 24, 2024 he again attempted to meet and confer with Plaintiff by e-mail to apprise him of “the intended demurrer filing, deficiencies of the First Amended Complaint, and providing Plaintiff with the opportunity to withdraw and amend his First Amended Complaint against Defendant.” (*Id.* at ¶ 11.) Counsel states that he further attempted to call Plaintiff on June 25, 2024, but was unsuccessful in reaching him. (*Id.* at ¶ 12.) Counsel then filed a declaration for a 30-day extension of time to file a responsive pleading pursuant to Code of Civil Procedure section 430.41(a)(2). (*Id.* at ¶ 13.) Counsel indicates that he made subsequent attempts to meet and confer with Plaintiff, but the parties were unable to reach an agreement resolving the issue. (*Ibid.*) The Court finds these meet and confer efforts sufficient and proceeds to consider the demurrer.

Plaintiff’s objections to service of the Demurrer based on the location (New York) where proof of service was executed is overruled. On reply, Defendant maintains service was proper since counsel’s office has employees all over the United States, including New York, New York. Therefore, the proof of service was truthfully executed under penalty of perjury. Defendant notes that in prior court appearances, Plaintiff confirmed in the presence of Court that he was in receipt of the demurrer. The Court agrees and finds service of the demurrer as indicated in the proof of service proper because the affiant included the location where service was effectuated.

Discussion.

Defendant Weirauch demurs to the FAC on the grounds that it is vague, ambiguous, unintelligible, uncertain, and lacks essential allegations. (Demurrer at p. 1:23-26.) Defendant argues Plaintiff fails to plead the elements of the first cause of action for general negligence as there are no facts to support how Defendant was “purportedly negligent.” (*Id.* at p. 6:6-8.) As to the second cause of action for intentional tort, Defendant states, “there is no attachment listed to the checked box for Intentional Tort and such the facts and the law are absent pertaining to it.” (*Id.* at p. 6:15-16.) As to Counts 1, 2, and 3¹, Defendant demurs on the grounds that these counts are incomplete and unintelligible. Defendant argues there are no facts alleged that would pertain to this Defendant and she is unable to determine the specifics of why she is being sued. (*Id.* at p. 6:24-26.)

Apart from the arguments regarding service of the demurrer already addressed by the Court, Plaintiff opposes the demurrer for “[e]xtensive and ongoing error, misrepresentation, and falsehood in papers of WEIRUCH Counsel Chetcuti (and his predecessor,” but does not

¹ Counts 1, 2, and 3 include: (1) Violation of Civil Code section 789.3, subdivision (b) – Trespass to chattels and Conversion; (2) Harassment – Violation of Civil section 1940.2, and (3) Harassment – Violation of Civil Code section 1942.5.

elaborate further. Plaintiff does not make any substantive arguments addressing the grounds for demurrer as also noted by Defendant on reply. (Reply at p. 3:26-27.) Defendant further notes Plaintiff has not indicated whether amendment can cure the defects of the FAC and has already had an opportunity to amend the pleadings. (*Id.* at p. 4:7-10.)

Defendant does not provide any authority indicating that the Court may not reach the merits of a demurrer for lack of a substantive opposition from Plaintiff. Accordingly, the Court proceeds to consider the merits of the demurrer and its challenge to the allegations of the FAC. In doing so, the Court is obligated to look past the form of a pleading to its substance and ignore erroneous or confusing labels if the complaint pleads facts entitling plaintiff to relief. (*Tran v. Nguyen* (2023) 97 Cal.App.5th 523, 528; *McBride v. Boughton* (2004) 123 Cal.App.4th 379, 385.)

The demurrer to the first cause of action for general negligence alleged in Form PLD-PI-001 is overruled

The Court does not find the pleading to be so uncertain or ambiguous that Defendant Weirauch is unable to respond. A “[d]emurrer for uncertainty will be sustained only where the complaint is so bad that the defendant cannot reasonably respond; i.e. he or he cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him.” (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

The Court finds the allegations related to Defendant Weirauch sufficiently state a cause of action for general negligence. “The elements of a negligence cause of action are duty, breach, causation, and damages.” (*Coyle v. Historic Mission Inn Corp.* (2018) 24 Cal.App.5th 627, 634.) “A duty of care may arise through statute, contract, the general character of the activity, or the relationship between the parties.” (*The Ratcliff Architects v. Vanir Constr. Management, Inc.* (2001) 88 Cal.App.4th 595, 604.)

Plaintiff here alleges that a duty of care arises under California Civil Code section 789.3 which sets forth obligation owing by a landlord to a tenant. Plaintiff has sufficiently alleged a tenancy at will with Defendant, which is subject to the provisions of Civil Code section 789.3. “ ‘A tenancy at will is an estate which simply confers a right to the possession of premises leased for such indefinite period as both parties shall determine such possession shall continue . . .’ ” (*Borden v. Stiles* (2023) 92 Cal.App.5th 337, 347-348 (*Borden*) [quoting *Covina Manor, Inc. v. Hatch* (1955) 133 Cal.App.2d 790, 792-793 (internal citations omitted)]). The court in *Borden* found a tenancy at will where the defendant resided on the property without a lease agreement, without paying rent, and for an indefinite term in exchange for performing work at unspecified times in relation to the tenancy. (*Borden, supra*, 92 Cal.App.5th at p. 348.) Similarly, Plaintiff alleges that there was no lease agreement setting forth a provision for payment of rent or duration of tenancy. (FAC: Factual Allegations at ¶ 2.) Rather, he was permitted to stay on the property and take care of the house and dogs. (*Ibid.*)

Plaintiff alleges facts which if proven may support a breach of the landlord’s duty of care as defined by Civil Code section 789.3: Plaintiff alleges that Defendant changed the locks and that his possessions had been packed and moved out of his room. (FAC: Factual Allegations at ¶¶ 25, 26, 29, 30, 31.) Allegedly, after Plaintiff responded to a written notice to leave, he experienced two reductions in service involving the WiFi which was replaced with new

network names, and hot water pressure, which had been lowered. (FAC: Form Allegations at ¶15.)

Plaintiff alleges that Defendant proximately caused his injuries, resulting in both medical and mental stress. (*Id.* at ¶ 20.) Thus, Plaintiff has sufficiently alleged facts stating a claim for general negligence. Defendant Weirauch's demurrer to the first cause of action for failure to state a claim and uncertainty is **OVERRULED**.

The demurrer to the second cause of action for intentional tort alleged in Form PLD-PI-001 is sustained for uncertainty

Plaintiff's second cause of action is generally for "intentional tort." (FAC: Form Complaint at p. 3.) The Court agrees with Defendant that this cause of action is ambiguous, uncertain, and unintelligible. Plaintiff does not specify to which intentional tort he is referring, and Defendant cannot adequately prepare a defense to an unknown cause of action. As Defendant notes, there is no attachment listed to the checked box for intentional tort. Even while the facts may give rise to an intentional tort, the Plaintiff does not specify which tort to determine the relevant law or authorities that would apply to them. For these reasons, the demurrer to the second cause of action is **SUSTAINED** for uncertainty.

The demurrer to Count 1 alleged in the Factual Allegations is overruled, but the demurrer to Counts 2 and 3 alleged in the Factual Allegations is sustained for uncertainty

In the FAC, after the recitation of facts attached to the pleading form, Plaintiff proceeds to state the applicable causes of action, but cautions, "THIS IS INCOMPLETE – TO BE PROVIDED." (FAC: Factual Allegations at p. 7:6-7.) It is unclear if Plaintiff intends to include additional causes of action or further develop his theory of liability for the causes of action asserted in Counts 1, 2, and 3.

In Count 1, Plaintiff conflates three causes of action together. (FAC: Factual Allegations at p. 7:10-14.) Count 1 is based on a violation of California Civil Code section 789.3, subdivision (b), trespass to chattels, and conversion. (*Ibid.*) As explained above, Plaintiff has stated a claim for violation of Civil Code section 789.3 in addition to a claim for negligence for failure to comply with the statute.

The elements of a cause of action for trespass to chattel are (1) the plaintiff's possession of the property, (2) the defendant's intentional interference with the plaintiff's use of the property, (3) without the plaintiff's consent, and (4) damages. (*Thrifty-Tel, Inc. v. Beznec* (1996) 46 Cal.App.4th 1559, 1566-1567.) "Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages. Conversion is a strict liability tort. The foundation of the action rests neither in the knowledge nor the intent of the defendant. Instead, the tort consists in the breach of an absolute duty; the act of conversion itself is tortious. Therefore, questions of the defendant's good faith, lack of knowledge, and motive are ordinarily immaterial." (*Burlesci v. Peterson* (1998) 68 Cal.App.4th 1062, 1066.)

Similar to the violation of Civil Code section 789.3, Plaintiff alleges that Defendant inventoried, gathered, and moved his personal effects out of the residence without his consent

and in violation of relevant statutes governing the disposition of personal property remaining at the end of a tenancy. (FAC: Factual Allegations at ¶¶ 25, 26, 30, 31.) Therefore, Plaintiff has sufficiently stated a claim for trespass to chattel and conversion. While the Court prefers each of these claims to be stated separately, it does not find Count 1 so unintelligible that the Defendant cannot respond or determine what issues must be admitted or denied. Accordingly, the demurrer to Count 1 is OVERRULED for failure to state a claim and uncertainty.

Counts 2 and 3, on the other hand, are based on violations of Civil Code sections 1940.2 for harassment: interference with quiet enjoyment and 1942.5 for harassment: no harassing after tenant has asserted rights under law. (FAC: Factual Allegations at p. 7:17-24.) Statutory causes of action must be pled with specificity. (*Zipperer v. County of Santa Clara* (2005) 133 Cal.App.4th 1013, 1020 [general rule that statutory causes of action must be specifically pled].) Plaintiff does not indicate which specific code or provision of the statute he relies upon to determine the applicable set of facts from the FAC that would give rise to these claims. With respect to Counts 2 and 3, Defendant cannot reasonably respond or determine which issues must be admitted or denied without more. For these reasons, the demurrer as to Counts 2 and 3 for uncertainty is SUSTAINED.

The Court will grant 20 days' leave to amend

Although Plaintiff has not requested leave to amend and has been granted one prior amendment already, the Court nevertheless notes that an effective amendment is both apparent and consistent with the plaintiff's theory of the case. Plaintiff unsuccessfully pleads intentional tort as his second cause of action but sufficiently alleges trespass to chattel and conversion along with a violation of Civil Code section 789.3 and general negligence. Additionally, further specification of the statutory violations under Counts 2 and 3 may assist and clarify Plaintiff's theory of the case. Accordingly, the Court will exercise its discretion and grant 20 DAYS' LEAVE AMEND.

Plaintiff is directed to conform his pleading to California Rules of Court, rule 2.112, which provides: "Each separately stated cause of action, count, or defense must specifically state: (1) Its number (e.g., 'first cause of action'); (2) Its nature (e.g., 'for fraud'); (3) The party asserting it if more than one party is represented on the pleading (e.g., 'by plaintiff Jones'); and (4) The party or parties to whom it is directed (e.g., 'against defendant Smith')." (Cal. Rules of Court., rule 2.112.)

Plaintiff is reminded that when a demurrer is sustained with leave to amend, the leave must be construed as permission to the pleader to amend the causes of action to which the demurrer has been sustained, not add entirely new causes of action. (*Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015.) To raise claims entirely unrelated to those originally alleged requires either a new lawsuit or a noticed motion for leave to amend. Absent prior leave of court an amended complaint raising entirely new and different causes of action may be subject to a motion to strike. (See also *Harris v. Wachovia Mortg., FSB* (2010) 185 Cal.App.4th 1018, 1023 ["Following an order sustaining a demurrer or a motion for judgment on the pleadings with leave to amend, the plaintiff may amend his or her complaint only as authorized by the court's order. The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend."].) The Court's order does not authorize the addition of any new claims or parties.

The Court will prepare the Order.

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Calendar Line 2

Case Name: *Olivas v. Morgan Hill Unified School Dist.*

Case No.: 24CV443908

As alleged in the First Amended Complaint filed October 2, 2024 (“FAC”), plaintiff Sara Luz Olivas (“Plaintiff”) was a substitute custodian for defendant Morgan Hill Unified School District (“District”) from May 2022 until July 10, 2023. (See FAC, ¶ 10.) In early May 2022, Plaintiff’s supervisor Kimberly Burrell (“Burrell”) made racially charged comments towards Plaintiff, telling Plaintiff that she was a “Mexican who could only speak Spanish” and calling her a “stupid, Mexican wetback.” (See FAC, ¶ 11.) In mid-May 2022, Plaintiff complained to District employee and supervisor Joe Stoykovich (“Stoykovich”) about Burrell’s inappropriate comments, and on May 16., 2022, Plaintiff met with Burrell and Stoykovich to discuss Burrell’s inappropriate behavior and comments, and when Burrell was asked why she mistreated Plaintiff, Burrell responded that it was because of her frustration due to the fact that Plaintiff could not speak English “correctly.” (See FAC, ¶ 12.) Although Stoykovich informed Burrell that Plaintiff spoke enough English to understand it, Stoykovich did not reprimand Burrell for her inappropriate behavior or comments. (*Id.*)

Plaintiff further alleges that after the meeting with Stoykovich, Burrell then accused Plaintiff of not showing up to work despite the fact that Plaintiff was cleaning a classroom. (See FAC, ¶ 13.) When Stoykovich contacted Plaintiff, Plaintiff showed Stoykovich that she was working at the jobsite and Stoykovich warned Plaintiff to be careful around Burrell. (*Id.*) A few days later, Plaintiff met with Burrell, Stoykovich and the Nordstrom Elementary School principal, Breanna Cull (“Cull”) where Burrell accused Plaintiff of not following instructions because she did not understand English. (*Id.*) Cull told Burrell that Plaintiff’s use and understanding of English was not an issue since she was already communicating effectively with other employees, to which Burrell retorted that Plaintiff only spoke Spanish and was “old.” (*Id.*) Cull told Burrell that she needed to “calm down” and work with Plaintiff because Burrell tried to terminate too many employees. (*Id.*)

On July 6, 2022, Plaintiff suffered a workplace injury while moving a 200-pound filing cabinet with a coworker where the filing cabinet smashed Plaintiff’s left shoulder and the moving dolly. (See FAC, ¶ 14.) Plaintiff reported the injury to Burrell who told Plaintiff that she did not have the documents to report the injury. (*Id.*) On July 7, 2022, Plaintiff contacted Burrell’s supervisor, Serafin Castro, and informed him about the incident and requested the necessary documents to report the injury. (*Id.*) Castro informed Plaintiff that he sent the documents to Burrell; however, when Plaintiff requested the documents from Burrell, she claimed that she never received the paperwork from Castro and Plaintiff thus never received the proper paperwork from Burrell. (*Id.*) After two other maintenance employees complained that Burrell was discriminated against Plaintiff, in mid-July 2022, the maintenance supervisor, Ricky Carillo, Castro and Stoykovich informed Plaintiff that she was being transferred to another jobsite so that she would not work with or near Burrell. (*Id.*)

On August 15, 2022, Plaintiff began working at Live Oak high School, reporting to Martin; however, Martin indicated that he did want Plaintiff working on his team because he did not like working with women—especially “old women.” (See FAC, ¶ 15.) Plaintiff reported the comments to Stoykovich, who indicated that he would report the comments to Martin’s supervisor; however, Plaintiff did not hear of any update on the complaint. (*Id.*) Thereafter, Martin forbade Plaintiff from using a golf cart to get around the campus despite other custodians using the golf carts, and gave Plaintiff more tasks as compared to the other custodians. (*Id.*) On September 8, 2022, Plaintiff arrived early to work and went to the breakroom to eat, upon she met Martin’s supervisor, Guy, and defendant Jayson Jacobo (“Jacobo”). (See FAC, ¶ 16.) Eventually, Guy left and soon afterwards, Jacobo got up and walked behind Plaintiff and began rubbing his hand in a circular motion on her back. (*Id.*) Jacobo then pulled up a chair, sat down next to Plaintiff, grabbed Plaintiff’s arm, grazed her chest, squeezed her body, and placed his face onto Plaintiff’s face and said, “I love old ladies.” (*Id.*) When other employees were heard entering the breakroom, Jacobo let Plaintiff go and quickly exited; Plaintiff then explained to Martin and fellow custodians Everado Barriga (“Barriga”) and Jorge Chavez what had happened. (*Id.*)

Distraught, Plaintiff sought medical attention and Plaintiff’s physician placed her on medical leave until September 14, 2022. (See FAC, ¶ 17.) In mid-September 2022, Martin scheduled a meeting with Plaintiff and Live Oak High School Assistant Principal Fernando Carmargo (“Carmargo”), and another meeting beforehand with just Plaintiff. (See FAC, ¶ 18.) Prior to the meeting, Martin held a meeting with Plaintiff at which he told Plaintiff that he did not need to meet with Camargo because Guy already spoke to Camargo about Plaintiff’s concerns and that Camargo agreed that Plaintiff and Jacobo should not work together anymore. (*Id.*) Plaintiff told Martin that Guy never spoke to Plaintiff about her concerns and Plaintiff asked Martin if he spoke with Camargo directly; Martin responded that he did not speak to Camargo directly because only Guy did. (*Id.*) Plaintiff nevertheless attended the meeting with Carmargo, and told Carmargo about the incident in the breakroom with Jacobo. (*Id.*) Carmargo responded that because there were no cameras in the breakroom, Plaintiff was unable to prove her accusations to which Plaintiff offered to take a polygraph test. (*Id.*) Carmargo told Plaintiff that he would investigate her concerns, that Plaintiff and Jacobo should not work together any further, and that if Plaintiff should arrive early, that she should wait in the office next to his until Jacobo was no longer there. (*Id.*)

On September 23, 2022, Plaintiff was in the breakroom with Martin and Barriga when Jacobo walked in, stood behind Martin, placed his arm around Martin’s back and while looking at Plaintiff directly, said, “I came to use my privileges.” (See FAC, ¶ 19.) After Jacobo left the breakroom, Plaintiff and Barriga asked why Jacobo was there since he was not supposed to work at the same time as Plaintiff, to which Martin responded that he did not know why Jacobo was there. (*Id.*) Later, Plaintiff were working on the Live Oak High School football field when Jacobo approached Plaintiff from behind, pressed his body into hers and in a sexual tone said, “You want a quickie?” (See FAC, ¶ 20.) Plaintiff was in such shock and disbelief that she urinated herself. (*Id.*) Barriga came over to see if Plaintiff was okay and when Plaintiff responded that she was not, and what Jacobo did to her, Plaintiff and Barriga left the football field to get Plaintiff away from Jacobo. (*Id.*) As Plaintiff and Barriga left the football field in a golf cart, Plaintiff saw Jacobo and Martin laughing with each other in the golf cart following behind them. (*Id.*) Plaintiff reported Jacobo’s conduct to Martin, that Martin saw what Jacobo did to her and did nothing to stop him, and that Jacobo was not supposed to be present while Plaintiff was working. (See FAC, ¶ 21.) Rather than investigating the incident, Martin blamed

Jacobo's conduct on Plaintiff because of the size of her breasts, insinuating that Plaintiff was to blame for Jacobo's conduct. (*Id.*) On September 27, 2022, Plaintiff met with Camargo and informed him of Jacobo's actions on both September 8, 2022, and September 23, 2022; Camargo told Plaintiff that an investigation would be conducted. (See FAC, ¶ 21.)

In October 2022, while Plaintiff sat in her personal vehicle before work, Jacobo stood in front of her vehicle, staring at her directly to intimidate Plaintiff. (See FAC, ¶ 22.) Once Plaintiff was able to go to work, she informed Barriga and Martin about what Jacobo did, and then complained to Camargo. (*Id.*) Camargo told her that there were no cameras to prove what happened but would speak to Martin and Jacobo. (*Id.*) Nevertheless, Jacobo's inappropriate conduct continued and on November 9, 2022, supervisor Ruben told Plaintiff that she would be working at a different jobsite and would return to work at Live Oak High School on November 15, 2022. (*Id.*)

On November 10, 2022, Camargo met with Plaintiff and told her that the investigation was closed and that her complaints were unsubstantiated, and requested Plaintiff to sign a document stating that her complaints against Jacobo were fabricated. (See FAC, ¶ 23.) Plaintiff declined to sign the document and asked if witnesses were interviewed. (*Id.*) Camargo replied that he interviewed Guy who denied everything; however, Plaintiff did not personally report anything to Guy. (*Id.*) Plaintiff asked Camargo to admit that he did not conduct a full investigation, which he rejected. (*Id.*) Thereafter, Plaintiff's hours were suddenly reduced due to a lack of work, with no other custodians having their hours reduced and District hiring additional custodians. (*Id.*) On November 15, 2022, Ruben informed Plaintiff that she would not return to work at Live Oak High School because there was no more work for her. (*Id.*) Plaintiff contacted District maintenance supervisor Ricky Carillo to ask if he knew about anything about the incident report she filed about Jacobo, to which Carillo responded that he tried to help her but the human resources representative did not let him intervene and was improperly handling Plaintiff's concerns. (*Id.*)

On December 23, 2022, Plaintiff met with District's human resources supervisor, Fawn Myers ("Myers"), who explained that the investigation into Plaintiff's complaints were closed. (See FAC, ¶ 24.) Plaintiff told Myers about the incidents with Jacobo, her meetings with Cull and Camargo, and the actions she experienced after her complaints about Martin. (*Id.*) Myers responded that Plaintiff's recounting of the events was not told to her and that no witnesses were interviewed even after the investigation was reopened. (*Id.*)

In January 2023, with school back in session, Plaintiff expected to return to work; however, Plaintiff was not assigned any hours. (See FAC, ¶ 25.) Instead, Plaintiff learned that District had hired several new custodians and continued to not get the same number of hours as other custodians. (*Id.*) Plaintiff then complained to Ruben that she felt that she was being retaliated for the filing of her reports and making complaints, to which Ruben instructed her to never the word "retaliation" again and that there was no work for her. (*Id.*) On March 2, 2023, Ruben then asked Plaintiff to train a newly hired custodian. (*Id.*) After she trained the newly hired custodian, Ruben told Plaintiff that he had no more work for her. (*Id.*)

On March 6, 2023, a union representative, Cheryl Van Deventer, contacted Plaintiff about a meeting she wanted Plaintiff to attend that day regarding incidents involving Jacobo with District human resources supervisor Kristin Stonehouse ("Stonehouse") and Myers. (See FAC, ¶ 24.) During this meeting, Myers indicated that Defendants conducted an investigation and

found Plaintiff's complaints unsubstantiated. (*Id.*) Myers stated that she spoke with Guy who claimed that he did not know anything and Martin who denied that the incidents occurred. (*Id.*) Plaintiff responded that Guy would not know anything because she never reported anything to Guy, but that Martin would know because he witnessed what Jacobo did to her. (*Id.*) Plaintiff asked why Chavez or Barriga were not interviewed, but Myers stated that it was not necessary. (*Id.*) However, Myers then showed Plaintiff a document signed by Jacobo in which he admitted to touching Plaintiff on September 8, 2022 and agreed to not have any contact with Plaintiff thereafter. (*Id.*) Myers then told Plaintiff not to discuss the incidents with other schools because District needed to protect Jacobo's reputation. (*Id.*) Myers then asked Plaintiff why she spoke with Carillo, to which Plaintiff responded that it was because he was a supervisor. (*Id.*) Plaintiff then asked Myers why she did not allow Carillo to intervene, and Myers responded that Carillo had nothing to say and instructed Plaintiff to not discuss the meeting with others. (*Id.*) In April 2023, Carillo informed Plaintiff that Myers interviewed him and that he told Myers what he knew about Plaintiff's complaints and that he thought the investigation into Plaintiff's complaints were incomplete. (*Id.*)

In April 2023, Plaintiff was offered work for yard duty at Jackson Academy of Math & Music wherein Plaintiff would oversee children during lunch and recess—a position she accepted. (See FAC, ¶ 27.) Plaintiff was then asked to start cleaning bathrooms. (*Id.*) However, in May 2023, the principal informed Plaintiff that there was no more work for her at Jackson Academy. (*Id.*) In late May 2023 to July 2023, Plaintiff was assigned to work at Central High School in Morgan Hill, but discovered that the other custodians were given additional hours. (*Id.*) On July 10, 2023, Ruben texted Plaintiff and told her that she was terminated and being replaced by another custodian. (See FAC, ¶ 28.)

On October 2, 2024, Plaintiff filed the FAC against District, Burrell and Jacobo, asserting causes of action for:

- 1) Discrimination on the bases of race, national origin, ancestry, sex/gender and age in violation of Government Code section 12900, et seq. (against District²);
- 2) Hostile work environment/harassment on the bases of race, national origin, ancestry, sex/gender and age in violation of Government Code section 12900, et seq. (against all defendants);
- 3) Retaliation for the exercise of rights guaranteed under FEHA (against District);
- 4) Failure to take all reasonable steps to prevent discrimination, harassment and retaliation in violation of Government Code section 12900, et seq. (against District);
- 5) Whistleblower retaliation in violation of Labor Code section 1102.5, et seq. (against District);
- 6) Disclosure of working conditions in violation of Labor Code section 232.5 (against District);
- 7) Violation of the Ralph Act—Civil Code section 51.7 (against District and Jacobo);
- 8) Interference with the exercise of Civil Rights in violation of the Bane Act—Civil Code section 52.1 (against District and Jacobo); and,

² The FAC asserts that the first and third through eighth causes of action are against "Entity Defendants," and does not identify those defendants. However, in the portion of Plaintiff's opposition discussing the demurrer to the seventh cause of action, she clarifies that "the cause of action is specifically directed to 'Entity Defendants,' referring to Defendant Morgan Hill Unified School District—the only entity defendant at play." (Pl.'s opposition to demurring defendants' demurrer ("Opposition"), p.8:4-6.)

9) Intentional infliction of emotional distress (against all defendants).

Defendants District and Burrell demur to the seventh through ninth causes of action on the grounds that they fail to state facts sufficient to constitute a cause of action.

DEFENDANTS DISTRICT AND BURRELL'S DEMURRER TO THE FAC

Seventh cause of action for violation of the Ralph Act

“[T]he elements of a Ralph Act claim [are]:... That [the defendant] threatened or committed violent acts against [the plaintiff or his or her property]... That a motivating reason for [the defendant's] conduct was [[his/her] perception of [the plaintiff's age or disability]]... That [the plaintiff] was harmed; and.... That [the defendant's] conduct was a substantial factor in causing [the plaintiff] harm.” (*Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860, 880-881 [57 Cal.Rptr.3d 454].) Demurring defendants District and Burrell (collectively, “demurring defendants”) argue that District cannot be liable for a cause of action pursuant to the Ralph Act because the FAC does not allege that District threatened or committed violent acts against Plaintiff or her property, and that District cannot be vicariously liable for a Ralph Act cause of action. (See demurring defs.’ memorandum of points and authorities in support of demurrer (“Defs.’ memo”), pp.4:18-28, 5:1-17.)

In support of their assertion, demurring defendants cite to *John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, in which the California Supreme Court discussed vicarious liability for an employee’s sexual misconduct. In coming to its conclusion, the *John R.* court first discussed the three reasons for the imposition of vicarious liability: “Three reasons have been suggested for imposing liability on an enterprise for the risks incident to the enterprise: ‘(1) [It] tends to provide a spur toward accident prevention; (2) it tends to provide greater assurance of compensation for accident victims[;] and (3) at the same time it tends to provide reasonable assurance that, like other costs, accident losses will be broadly and equitably distributed among the beneficiaries of the enterprises that entail them.’” (*Id.* at p.451.) As to accident prevention for the sexual misconduct of an employee, the California Supreme Court stated that “[a]lthough it is unquestionably important to encourage both the careful selection of these employees and the close monitoring of their conduct, such concerns are, we think, better addressed by holding school districts to the exercise of due care in such matters and subjecting them to liability only for their own direct negligence in that regard.” (*Id.*) As to the assurance of compensation for victims, the court stated that “[t]he acts here differ from the normal range of risks for which costs can be spread and insurance sought... [t]he imposition of vicarious liability on school districts for the sexual torts of their employees would tend to make insurance, already a scarce resource, even harder to obtain, and could lead to the diversion of needed funds from the classroom to cover claims.” (*Id.*) As to the last reason—the propriety of spreading the risk of loss among the beneficiaries of the enterprise—the court stated that the connection between the authority of the school district’s employees—there, a teacher—“to carry out their instructional duties and the abuse of that authority to indulge in personal, sexual misconduct is simply too attenuated to deem a sexual assault as falling within the range of risks allocable to a teacher's employer... [i]t is not a cost this particular enterprise should bear, and the consequences of imposing liability are unacceptable.” (*Id.* at pp. 451-452.)

In *Alma W. v. Oakland Unified School Dist.* (1981) 123 Cal.App.3d 133, the First District also noted that “[a]n employer is vicariously liable for the torts of employees committed within the

course or scope of their employment” and that “[t]he determination as to whether an employee committed a tort during the course of his employment turns on whether or not: 1) the act performed was either required or ‘incident to his duties’ ... or 2) the employee’s misconduct could be reasonably foreseen by the employer in any event....” (*Id.* at pp. 138-139.) Noting that “[i]f an employee substantially deviates from his duties for personal purposes, the employer is not vicariously liable for the employee’s actions,” the *Alma* court determined that sexual misconduct by the custodian presented “a factual situation where the connection between the employee’s duties and the employee’s wrongful action has become so attenuated that the law will not hold the employer vicariously liable... [as the sexual misconduct] is in no way related to mopping floors, cleaning rooms, or any of the other tasks that are required of a school custodian. (*Id.* at pp.139-140 (also stating that the perpetrator’s “action, prompted by wholly personal motivations, was clearly not required or incidental to his duties as a school custodian”).) As to the second factor regarding whether the misconduct could be reasonably foreseen, the *Alma* court stated that “where the question is one of vicarious liability, the inquiry should be whether the risk was one ‘that may fairly be regarded as typical of or broadly incidental’ to the enterprise undertaken by the employer.” (*Id.* at p.142 (also stating that “[t]he test is not whether it is foreseeable that one or more employees might at some time act in such a way as to give rise to civil liability, but rather, whether the employee’s act is foreseeable *in light of the duties* the employee is hired to perform”) (emphasis original).) “Thus, while it might be foreseeable for a school custodian to become involved in a dispute over the manner in which he swept the floors or cleaned a classroom and for the dispute to end in someone being hit with a mop... [t]here is no aspect of a janitor’s duties that would make sexual [violent misconduct] anything other than highly unusual and very startling.” (*Id.* at pp.142-143.)

In opposition, Plaintiff notes that the seventh cause of action alleges threatened or actual violence or intimidation. (See Opposition, p.7:15-27.) As to whether District’s vicarious liability, Plaintiff merely notes that Government Code section 815.2, subdivision (a) states that “[a] public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Opposition, p.8:8-14, quoting Gov. Code § 815.2, subd. (a).) However, Plaintiff utterly fails to address either *John R.*, *supra*, or *Alma W.*, *supra*, and does not otherwise establish that the alleged sexual violence pursuant to Civil Code section 51.7 perpetrated against her was within the course or scope of Jacobo’s employment.

While it does not appear that Plaintiff can state facts sufficient to constitute a cause of action for violation of Civil Code section 51.7, Plaintiff shall be afforded one final opportunity to allege a viable cause of action. District’s demurrer to the seventh cause of action is SUSTAINED with 10 days leave to amend.

Eighth cause of action for interference with the exercise of Civil Rights in violation of the Bane Act—Civil Code section 52.1

The parties make the same argument regarding vicarious liability as to the eighth cause of action. (See Defs.’ memo, p. 5:23-24 (arguing that “District is not vicariously liable for any sexual misconduct committed [by] an employee”); see also Opposition, p.9:3-18 (arguing that the eighth cause of action is premised on violence or threatened violence, and that pursuant to Government Code section 815.2, “there should be no doubt that the District can be held liable

for the actions of its employees”).) For identical reasons as the seventh cause of action, District’s demurrer to the eighth cause of action is SUSTAINED.

District additionally argues that Civil Code section 52.1 does not provide direct liability against it as it is not a “person” pursuant to Civil Code section 14. Section 52.1 indeed provides a cause of action against “a person or persons” if they “interfere[] by threat, intimidation, or coercion, or attempt[] to interfere by threat, intimidation, or coercion, with the exercise or enjoyment by any individual or individuals of rights secured by the Constitution or laws of the United States, or of the rights secured by the Constitution or laws of this state....” (Civ. Code § 52.1, subd. (b).) “Although Civil Code section 14 states ‘the word person includes a corporation as well as a natural person,’ it does not state the word includes government entities.” (*K.M. v. Grossmont Union High School Dist.* (2022) 84 Cal.App.5th 717, 751, quoting Civ. Code § 14.) “A public school district is a political subdivision of the State of California... [and t]o the extent a school district is characterized as a public corporation, the word ‘corporation’ in that term does not mean it is a ‘corporation’ within the meaning of Civil Code section 14....” (*Id.* at p.752.) Plaintiff apparently concedes the issue as it is not addressed in the opposition.

Again, while it does not appear that Plaintiff can state facts sufficient to constitute a cause of action for violation of Civil Code section 52.1, Plaintiff shall be afforded one final opportunity to allege a viable cause of action. District’s demurrer to the eighth cause of action is SUSTAINED with 10 days leave to amend.

Ninth cause of action for intentional infliction of emotional distress (IIED)

The ninth cause of action alleges that it is brought against Burrell and Jacobo and vicariously against District. (See FAC, ¶ 94.) Demurring defendants argue that as to Burrell, the allegations fail to state facts that sufficiently support a cause of action for intentional infliction of emotional distress and, as previously stated, District cannot be vicariously liable for the sexual misconduct of Jacobo as such behavior is not within the course or scope of Jacobo’s employment.

As to District’s liability premised on Jacobo’s misconduct, the parties again make the same argument regarding vicarious liability as to the eighth cause of action. (See Defs.’ memo, p. 7:19-27 (arguing that “California courts have determined that employers, like the District, cannot be held vicariously liable for an employee’s sexual misconduct, as such behavior is outside the scope of employment, citing *John R.*, *supra*, 48 Cal.3d at p.447; see also committed [by] an employee”); see also Opposition, p.9:3-18 (arguing that the eighth cause of action is premised on violence or threatened violence, and that pursuant to Government Code section 815.2, “there should be no doubt that the District can be held liable for the actions of its employees”).) For identical reasons as the seventh and eighth causes of action, the ninth cause of action fails to state facts sufficient to constitute a cause of action for intentional infliction of emotional distress based on Jacobo’s conduct.

As to Burrell’s conduct, the FAC alleges that in early May 2022, Burrell made racially charged comments towards Plaintiff including that she was “a stupid, Mexican wetback” and was a “Mexican who could only speak Spanish.” (See FAC, ¶ 11.) Burrell allegedly was frustrated by Plaintiff because she felt that Plaintiff “did not speak English ‘correctly,’” although Burrell’s supervisor informed Burrell that Plaintiff spoke enough English to understand it.

(See FAC, ¶ 12.) Burrell then accused Plaintiff of not showing up to work—despite Plaintiff actually being on site and cleaning a classroom—and not following instructions due to a lack of understanding of English—despite the principal’s statement that Plaintiff was communicating effectively with the other employees. (See FAC, ¶ 13.) Burrell then retorted that Plaintiff only spoke English and then called her “old.” (*Id.*) Thereafter, Burrell did not process paperwork regarding a workplace injury suffered by Plaintiff and Plaintiff was ultimately transferred to a different jobsite. (See FAC, ¶ 14.) Demurring defendants argue that “these allegations... do not rise to the level of outrageousness required for an IIED claim.... These actions, when examined in the employment context alleged, fall within the realm of personnel management and are therefore insufficient for establishing the extreme and outrageous standard needed for such a claim.” (Defs.’ memo, p.7:8-12.) However, the Sixth District stated that “an employer’s use of racial slurs, against an employee who is susceptible to such slurs, may constitute ‘outrageous’ conduct” for an IIED cause of action.³ (*Robinson v. Hewlett-Packard Corp.* (1986) 183 Cal.App.3d 1108, 1128-1130, citing *Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 498, fn. 4 (stating “Plaintiff’s own susceptibility to racial slurs and other discriminatory conduct is a question for the trier of fact, and cannot be determined on demurrer”)); see also *Smith v. BP Lubricants USA Inc.* (2021) 64 Cal.App.5th 138, 148 (stating that “[o]ur Supreme Court holds that an IIED claim can stem from the use of racial epithets if coupled with aggravating circumstances... where reasonable men may differ, it is for the jury, subject to the control of the court, to determine whether, in the particular case, the conduct has been sufficiently extreme and outrageous to result in liability”).) Additionally, “behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (*Smith, supra*, 64 Cal.App.5th at p.147; see also *Cole v. Fair Oaks Fire Protection Dist.* (1987) 43 Cal.3d 148, 155, fn. 7 (stating same); see also *Robinson, supra*, 183 Cal.App.3d at p.1130 (stating same).) Here, Plaintiff’s supervisor Burrell allegedly used a racial epithet against Plaintiff, subjected her to false claims regarding her work performance, ultimately requiring Plaintiff to transfer to a different jobsite. “The facts alleged in the complaint are taken as true for purposes of a demurrer.” (*Centex Homes v. St. Paul Fire & Marine Ins. Co.* (2015) 237 Cal.App.4th 23, 26.) These allegations, if true, are sufficient on demurrer. (See *Smith, supra*, 64 Cal.App.5th at p.148 (stating “whether conduct is outrageous is ‘usually’ a question of fact”), quoting *Barker v. Fox & Associates* (2015) 240 Cal.App.4th 333, 356; see also *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 204 (stating same); see also *So v. Shin* (2013) 212 Cal.App.4th 652, 672 (stating same).)

Demurring defendants’ demurrer to the ninth cause of action for intentional infliction of emotional distress on the ground that it fails to allege facts sufficient to constitute outrageous conduct is **OVERRULED**.

The Court will prepare the Order.

³ In *Robinson, supra*, the plaintiff’s supervisor did not actually use a racial epithet; rather, the supervisor stated that “she did not like Blacks,” and made a racist statement regarding work productivity. (*Id.* at p.1115.) Ultimately, the *Robinson* court determined that such evidence was sufficient to raise a triable issue of material fact as to whether the employer engaged in “outrageous” conduct. (*Id.* at p.1130.)

Calendar Line 3

24CV452321

The Wonderful Company LLC v. Flor Martinez Zaragoza

Pursuant to CCP section 425.16(g) Plaintiff's Motion to Compel limited and necessary discovery is GRANTED.

Code Civ. Proc. § 425.16, subd. (g) states that "[t]he court, on noticed motion and for good cause shown, may order that specified discovery be conducted" The Court has discretion in allowing what it wants for discovery. (*See Schroeder v. Irvine City Council* (2002) 97 Cal.App.4th 174, 183 (stating that "the court has discretion to permit specified discovery for good cause"); *see also Sanchez v. Bezos* (2022) 80 Cal.App.5th 750, 778 (stating that "notwithstanding the discovery stay, the court has discretion to order, upon good cause, specified discovery if required to overcome the hurdle of potential inadmissibility").)

Here, plaintiff is seeking specific information regarding whether or not Plaintiff's Instagram account is a "news publication" and the sources of specific statements regarding Plaintiff's agricultural practices or participation in "cloud-seeding", specifically including, the identity of plaintiff's employee who purportedly provided information to the defendant thereby supporting defendant's assertion in the SLAPP that the she lacked malice. Obviously, if the plaintiff can demonstrate that either there is no employee who made a statement to the defendant or if once identified, the plaintiff's employee testifies that s/he did not make the alleged statement to the defendant, this evidence would demonstrate a probability of the plaintiff prevailing on the claim.

Discovery as to these issues is reasonably limited and sought by timely petition on matters that are directly probative of an issue raised by the pending SLAPP motion.

Plaintiff has leave to serve not more than 30 total written discovery requests (interrogatories, requests for production, requests for admission or combination thereof) and to take the deposition of the Defendant for a period not to exceed three hours. Any requests that Defendant produce documents at her deposition shall be counted as part of the limitation on 30 written discovery requests. Plaintiff shall serve the discovery requests within 10 days.

Within the next 10 days, counsel shall meet and confer and reach agreement on a date of Defendant's deposition so that it occurs after Defendant responds to written discovery and produces documents, but early enough to allow a transcript to be available for Plaintiff's use in preparing its opposition to Defendant's special motion to strike.

Moving Party to prepare the written order, which shall include the date and time of Defendant's deposition.

Moving Party to prepare the Order.

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22CV393572

AOC San Felipe OPCO, LP v. Alberta Goode and Donna Novi

On January 20, 2022 Plaintiff filed its complaint in this action for collection of a \$12,736.26 debt. The date of the alleged breach was January 21, 2021. Thereafter, Plaintiff delayed prosecution of the action, by failing to appear at the initial case management conference on 6/14/2022, and thereafter failing to serve Defendants. This Court gave Plaintiff five opportunities to appear and show diligent efforts to serve the Defendants, setting Orders to Show Cause re Dismissal for Failures to Serve on 9/29/22, 4/20/23, 9/14/2023, 12/14/2023 and 5/2/2024. It appears that it was not until February 11, 2024 (after the passage of the two-year time period for discretionary dismissal under CCP section 583.420) that Plaintiff even submitted an application for serve by alternate means.

Even if February 2024 Application for Service by Publication had been accepted for filing by the Clerk of Court, insufficient evidence is contained therein to support the claim that publication in the Santa Clara Weekly would give notice to the Defendants. According to the Declarations of Due Diligence, in 2022, Plaintiff was informed that Defendant Alberta Goode had a stroke and had relocated to Arizona. In May 2023, Plaintiff was informed that the “last known address” that it had for Defendants in Santa Clara County was vacant. No more current information regarding the whereabouts of Defendants – or even that they remained in Santa Clara County as of February 2024 was provided.

There is insufficient evidence that Plaintiff’s inability to effect personal service or delay in pursuing publication prior to the dismissal ordered on May 2, 2024 is due to excusable neglect.

Further, Code of Civil Procedure section 583.210 requires that service be made within three years after the action is commenced. CCP §583.250 mandates the dismissal of an action that is not served within three years. It has been more than three years since the action was commenced. It has not been served on either defendant. Further, Plaintiff could have filed this motion earlier, or sought to have it heard prior to the three-year anniversary of filing this action. That did not occur. Accordingly, the Court cannot set aside the dismissal now.

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